

Motor Vehicle Transfer Agreement

Date: 29 March 2025

Effective Date: 29th March 2025

Parties:

- **Seller:** Thomas Property Management Pty Ltd (ACN [608 268 382, a company incorporated under the laws of Australia, acting as trustee for The Oxygen Fit Group Trust (ABN 71 397 527 214), of U 191 The Avenue, Ocean Grove VIC 3226 (“the Seller”).
- **Buyer:** Milani Simic, of 29 Lang St Coolumb Beach (“the Buyer”).

Recitals:

- A. The Seller is the registered owner of the Vehicle, subject to a security interest held by St. George Bank.
- B. The Buyer has contributed \$14,053.00 AUD toward historical loan repayments for the Vehicle.
- C. The Seller agrees to transfer title to the Vehicle to the Buyer upon full repayment of the outstanding loan, on the terms below.
- D. The Buyer is the spouse of Lloyd Thomas, sole director of the Seller, and this transaction is approved as a related party transaction under s 208 of the Corporations Act 2001 (Cth).

Vehicle:

- **Make & Model:** 2021 Kia Sportage NQ5 MY22 GT-Line Wagon 5dr DCT 7sp AWD 1.6T
- **VIN:** KNAPX81BWN7020251
- **Registration:** 379IB8

Valuation:

As per the RedBook Valuation Certificate dated 24 March 2025, the average private sale value of the Vehicle is \$32,491.00 AUD.

Terms of Agreement:

1. Assumption of Loan Payments:

- The Buyer will assume responsibility for all remaining loan payments to St. George Bank (Account Number 846025254), with an outstanding balance of \$15,490.07 AUD as at 6 April 2025 (per Schedule B – Loan Payout Confirmation).
- Payments will continue monthly until the loan is fully repaid, anticipated on or about 6th December 2025.

2. Historical Contributions:

- The Buyer has contributed \$14,053.00 AUD toward historical repayments, as detailed in Schedule A – Historical Contributions Summary, representing 50% of joint repayments made to St. George Bank (Account Number 845539779, extended to 846025254).
3. **Final Payment and Title Transfer:**
- Upon full repayment of the loan, the Buyer will pay the Seller \$1,000.00 AUD within 7 days (“Final Payment”).
 - Upon receipt of the Final Payment, the Seller will transfer title to the Vehicle to the Buyer, free of all encumbrances.
 - The Seller will ensure discharge of the St. George Bank security interest within 7 days of loan repayment and provide evidence of discharge to the Buyer.
4. **Total Consideration:**
- The total value of this agreement is \$30,543.07 AUD, comprising:
 - a. \$14,053.00 AUD (historical contributions);
 - b. \$15,490.07 AUD (loan payout assumed by the Buyer);
 - c. \$1,000.00 AUD (Final Payment).
 - This reflects fair market value, consistent with the RedBook valuation and the Buyer’s contributions.
5. **Ongoing Obligations:**
- The Buyer accepts all ongoing costs and obligations related to the Vehicle (e.g., insurance, registration, maintenance) from the Effective Date.
6. **Remedies for Default:**
- If the Buyer fails to make any loan payment, resulting in default with St. George Bank, the Seller may terminate this agreement by written notice, retain the Vehicle, and claim damages for any loss incurred.
 - If the Final Payment is not made within 7 days of loan repayment, the Seller may retain title or pursue legal remedies, including recovery of the \$1,000.00 AUD plus interest at the rate prescribed under the Penalty Interest Rates Act 1983 (Vic).
 - If St. George Bank repossesses the Vehicle due to the Buyer’s failure to make payments, the Buyer indemnifies the Seller for any loss, including legal costs or shortfall owed to the bank.”
7. **Related Party Approval:**
- The Buyer is a related party under s 228(2) of the Corporations Act 2001 (Cth), being the spouse of Lloyd Thomas, sole director.
 - Lloyd Thomas, as sole member, approves this transaction under s 208(1) on 29 March 2025, confirming it provides a financial benefit to the Buyer on terms no less favourable than arm’s length, supported by the RedBook valuation and historical contributions.
8. **Company Solvency:**
- The Seller confirms it is solvent as at 29 March 2025 and able to meet its debts as they fall due.
9. **Trust Solvency:** The Seller confirms that The Oxygen Fit Group Trust is solvent as at 29 March 2025 and able to meet its debts as they fall due.

10. **Trustee Authority:** “The Seller confirms it has full authority under the trust deed of The Oxygen Fit Group Trust to enter this agreement.”

11. **Governing Law:**

- This agreement is governed by the laws of Victoria, Australia, and the parties submit to the non-exclusive jurisdiction of its courts.

12. **Notices:** Notices under this agreement must be sent to the parties’ addresses listed above, or as updated in writing.

Execution:

Signed for and on behalf of Thomas Property Management Pty Ltd in accordance with s 127 of the Corporations Act 2001 (Cth):



Lloyd Thomas

Sole Director and Sole Company Secretary

Thomas Property Management Pty Ltd

Date: 29th March 2025



Milani Simic

Buyer

Date: 29th March 2025